



CHAPTER clxiv.

An Act to empower the Walker and Wallsend Union Gas Company to raise additional capital and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS by the Walker and Wallsend Union Gas Act 1866 (hereinafter referred to as "the Act of 1866") the Walker and Wallsend Union Gas Company (hereinafter referred to as "the Company") were incorporated and empowered to supply with gas the townships of Wallsend Willington and Howdon otherwise Howdon Pans in the parish of Wallsend and the township of Walker in the parish of Longbenton all in the county of Northumberland :

And whereas by the Walker and Wallsend Union Gas Act 1884 (hereinafter referred to as "the Act of 1884") the Company were authorised to construct additional works for the manufacture of gas and the residual products resulting therefrom and to raise further capital for the purposes of their undertaking and provision was made for regulating the pressure purity and illuminating power of the gas supplied by the Company :

And whereas the capital of the Company entitled to dividend consists of fifty-nine thousand two hundred and fifty-five pounds of ordinary stock called "Walker and Wallsend Gas consolidated stock" (hereinafter referred to as "consolidated stock") bearing dividend at the standard rate of seven per centum per annum subject to increase as prescribed by the Act of 1884 and twenty thousand seven hundred and forty-five pounds consisting of premiums obtained on the sale of such stock and not entitled to dividend and the Company have borrowed on mortgage sums amounting together to twenty thousand pounds :

And whereas it is expedient that the consolidated stock of the Company should be converted into a capital stock of one hundred and eighteen thousand five hundred and ten pounds entitled to

A.D. 1903. — dividend at the standard rate of three-and-a-half per centum per annum subject to increase or decrease as hereinafter provided :

And whereas the Company have raised the whole of their authorised capital and it is expedient that they should be authorised to raise additional capital for the purposes of their undertaking and that further powers should be conferred upon them as in this Act contained :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short titles. 1. This Act may be cited as the Walker and Wallsend Union Gas Act 1903 and the Act of 1866 the Act of 1884 and this Act may be cited together as the Walker and Wallsend Union Gas Acts 1866 to 1903.

Incorporation of Acts. 2. The following enactments as far as applicable and except where expressly varied by this Act are incorporated with and form part of this Act (that is to say) :—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The making of dividends ; and

The giving of notices :

Part I. (relating to cancellation and surrender of shares)
Part II. (relating to additional capital) and Part III.
(relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts :

The provisions of the Gasworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction and the expression "the recited Acts" means the Act of 1866 and the Act of 1884.

A.D. 1903.
Interpreta-
tion.

4.—(1) As on and from the first day of January one thousand nine hundred and four the Company's seven per centum consolidated stock amounting to fifty-nine thousand two hundred and fifty-five pounds shall be by virtue of this Act converted into one hundred and eighteen thousand five hundred and ten pounds ordinary stock to be called Walker and Wallsend Gas three and a half per centum consolidated stock (hereinafter called "converted stock") entitled to dividend as hereinafter prescribed and such last-mentioned stock shall belong to and be divided among the persons who immediately before the said first day of January one thousand nine hundred and four are entitled to be the holders of consolidated stock in the proportion of two hundred pounds of such converted stock for every one hundred pounds of consolidated stock and so in proportion for any greater or lesser amount of consolidated stock.

Conversion
of capital
stock.

(2) For the purposes of the provisions of the Companies Clauses Consolidation Act 1845 incorporated with this Act the converted stock shall be deemed to have been formed by the conversion of shares into stock.

(3) Nothing in this section shall be deemed to authorise the Company to alter the amount of the insurance fund they are by the Act of 1884 authorised to form.

5. Subject to the provisions of this Act or as soon as may be after the first day of January one thousand nine hundred and four the Company shall register in the name of every person entitled immediately before that day to be the holder of consolidated stock the amount of converted stock to which he is under this Act entitled and shall in due course on application by him deliver to every person entitled to be such holder as aforesaid free of charge in exchange for a certificate or certificates of his holding of or title to such consolidated stock a certificate for and representing such an amount of converted stock as he is entitled to under the provisions of this Act Provided always that the Company shall not be required to deliver any new certificate unless and until the existing certificate or certificates of consolidated stock in substitution for

Company
to register
stock in
names of
persons
entitled.

A.D. 1903. — which such new certificate is to be delivered shall either have been given up to the Company to be cancelled or have been proved to the reasonable satisfaction of the Company to be lost or destroyed and an indemnity has been given to the Company against every and any claim in respect thereof and the Company shall not be required to pay any dividend on any capital stock in respect of any half year after that ending the thirty-first day of December one thousand nine hundred and three unless and until an exchange of certificates relative to such stock in accordance with this Act has been applied for and the exchange has been duly effected.

Stock to be held on trusts affecting stock for which same substituted.

6. The converted stock created and vested by the foregoing provisions of this Act shall be vested in the persons respectively entitled under the provisions of this Act thereto and be held by them upon the same trusts and subject to the same powers provisions declarations agreements covenants conditions engagements charges liabilities and incumbrances as affected the consolidated stock for which such stock is substituted and any deed or instrument or any testamentary or other disposition referring to the consolidated stock shall take effect with reference to the whole or a proportionate part as the case may be of the converted stock.

Holders of stock to have same rights and liabilities as holders of stock for which same substituted.

7. The holders of the converted stock shall (subject to the express provisions of this Act) respectively be and continue entitled and subject to all their existing rights and liabilities as holders of the consolidated stock except that on and after the thirty-first day of December one thousand nine hundred and three they shall cease to be entitled to any dividend other than the dividend provided for by this Act and that on and after the said date they shall be entitled to be and be holders of their proper proportions of converted stock substituted therefor.

Power to raise additional capital.

8. The Company may from time to time (in addition to any other capital they are authorised to raise) raise further capital (in this Act called "additional capital") to such nominal amount as shall be sufficient to produce including the premium (if any) which may be obtained on the sale thereof the sum of one hundred and twenty thousand pounds by the creation and issue at their option of new preference stock or of new ordinary stock but not more than one half of such capital shall be issued as preference stock and the Company shall not issue any part of such preference or ordinary stock nor shall any such stock vest in the person or corporation accepting the same unless and until the full price paid for such stock together with any premium obtained on the sale thereof shall have been paid in respect thereof.

A.D. 1903. by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be given as to sale of stock.

16. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of the borough of Wallsend and to the clerk of each urban and rural district council having jurisdiction within the limits of the Company for the supply of gas and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits.

Stock not sold may be offered to stockholders consumers of gas and persons in employ of Company.

17. When any stock created under the powers of this Act has been offered for sale by auction or by tender and not sold the same may (with the approval of and in the manner directed by the Board of Trade to be signified in writing under the hand of an assistant secretary of that Board) be offered by the directors at a price not lower than five per centum below the reserved price put upon the same for the purpose of sale by auction or tender to all the consumers of the Company's gas and to all persons in the Company's employ or partly to one and partly to the other of such classes of persons and in such proportions as the directors may determine and any stock not so offered or so offered and not accepted within one month after such offer is made shall be offered at the reserved price put upon the same respectively for the purpose of such sale by auction or tender to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act except that the reserve put upon such stock may upon such subsequent auction or tender if the directors of the Company think fit be less than the former reserved price and any stock not then sold shall again be offered at the last-mentioned reserved price to the holders of ordinary stock of the Company and so from time to time until the whole of such stock is sold.

Power to borrow.

18. The Company may from time to time subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital any sum or sums not exceeding in the whole one-third part of the amount which the Company have

at the time actually raised in the additional capital but no part thereof shall be borrowed until the whole of the additional capital at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such capital together with the premium (if any) realised on the sale thereof has been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

A.D. 1903.

19. All provisions in the recited Acts by which the mortgagees of the Company are empowered to enforce payment of principal and interest or principal or interest due on their mortgages by the appointment of a receiver are by this Act repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision previous to the passing of this Act or to any rights of existing mortgagees of the Company at the date of the passing of this Act.

Repeal of provisions of recited Acts with respect to appointment of receiver.

20. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than three thousand pounds in the whole.

For appointment of receiver.

21. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages.

Debenture stock.

Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act.

A.D. 1903. Priority of mortgages and debenture stock over other debts.	22. All money raised by the Company on mortgage or by the issue of debenture stock after the passing of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled to rank in priority to or <i>pari passu</i> with the interest or dividend on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the Company's undertaking and works or injuriously affected by the construction thereof or by the exercise of any of the powers conferred upon the Company.
Existing mortgages to have priority.	23. All mortgages granted by the Company under the powers of the recited Acts before the passing of this Act and subsisting at the date of the passing of this Act shall except where otherwise expressly provided during the continuance thereof have priority over all mortgages granted by virtue of this Act.
Application of funds.	24. All moneys raised under this Act whether by capital stock debenture stock or borrowing shall be applied to the purposes of this Act and to the general purposes of the Company being in all cases purposes to which capital is properly applicable.
Power to apply funds.	25. The Company may apply to any of the purposes of this Act to which capital is properly applicable any money which they have raised or which they have power to raise by the recited Acts and which is not required for the purposes to which it is by the recited Acts made applicable.
Profits of Company limited. Standard rates of dividend.	26. Except as by this Act provided the profits of the Company to be divided among the shareholders in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") (that is to say) On the converted stock the rate of three pounds ten shillings in respect of every one hundred pounds of such capital and on the additional capital the rate of five pounds in respect of every one hundred pounds actually paid up of such capital whether issued as ordinary capital or preference capital.
Dividends on different classes of ordinary stock to be paid proportionately.	27. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend

at the authorised rate on each class of ordinary stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class. A.D. 1903.

28. On and as from the first day of January one thousand nine hundred and four sections 22 and 23 of the Act of 1884 shall be and are hereby repealed and the following provisions shall take effect in lieu thereof (that is to say) :—

The standard price to be charged by the Company for gas supplied by them shall be three shillings and twopence per thousand cubic feet Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the standard rate of dividend payable by the Company on its ordinary stock as follows :—

In respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds ;

And in respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary stock and so in proportion for any fraction of one hundred pounds :

Provided that if in any year the dividend payable shall be of such amount as to involve the payment of a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend or add the same to the reserve fund.

As from the said first day of January one thousand nine hundred and four sections 24 to 26 of the Act of 1884 shall be

A.D. 1903. —	read and have effect as if the standard rates of dividend prescribed by this Act had been therein referred to instead of the standard rate of dividend therein referred to.
Altering qualification of directors.	29. Section 35 of the Act of 1866 is hereby repealed and after the passing of this Act the qualification of a director shall be the possession in his own right of not less than four hundred pounds of stock (nominal value) in the capital of the Company.
Quorum of meetings.	30. Section 32 of the Act of 1866 is hereby repealed and after the passing of this Act the quorum of general meetings shall be five shareholders present in person or by proxy holding in the aggregate not less than two thousand pounds (nominal value) in the capital of the Company.
Altering scale of voting at general meetings.	31. At all general meetings of the Company after the passing of this Act every shareholder entitled to vote shall have one vote for each ten pounds (nominal value) of capital stock held by him but not more than fifty votes in the whole and every provision of the recited Acts prescribing the scale of voting at general meetings of the Company is hereby repealed.
Interim dividend.	32. The directors may in any year without calling a meeting of proprietors in the Company for the purpose declare an interim half-yearly dividend on any class or classes of stock not exceeding one half of the amount of the standard rates of dividend out of the then ascertained profits of the Company provided that the amount of dividends which under the powers of this Act they may be entitled to make in respect of each year shall not be exceeded.
Closing of transfer books previous to declaring interim dividend.	33. It shall be lawful for the directors to close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the principal office of the Company is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the party claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.
As to illuminating power of gas.	34. On and from the first day of January one thousand nine hundred and four section 36 of the Act of 1884 shall be read and construed as if the word "fourteen" had been inserted therein instead of the words "fifteen and a half" and in making tests for illuminating power the gas shall be burned at such rate as to yield the maximum light for which the burner for the time being used for making such tests shall be designed.

35. The Company shall at any time within two years after the first day of January one thousand nine hundred and four if and when required by the consumers of the gas supplied by the Company other than the consumers by slot meters supply to them and fix free of charge a sufficient number of burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Act.

A.D. 1903.
Company
to supply
burners to
consumers
free of
charge with-
in stated
period.

The Company shall also as soon as reasonably practicable after the said first day of January one thousand nine hundred and four and at the latest within the period of twelve months thereafter exchange the burners used by consumers of gas supplied by the Company by means of slot meters for burners similarly suitable for the consumption of gas of the illuminating power prescribed by this Act.

Notice of the provisions of this section shall be given on each demand note of the Company sent out during the same period.

36. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

As to speci-
fication of
internal fit-
tings and
construction
and placing
of pipes &c.
between
mains and
consumer's
premises.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specifications shall be published twice in some newspaper or once in each of two newspapers circulating in the limits of the Company for the supply of gas and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or in a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the

A.D. 1903.

Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to supply gas apparatus and fittings for heating and other purposes.

37.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture stoves and ranges gas engines and electric and other apparatus in connection therewith meters and pipes and other fittings for or in connection with lighting or the warming or ventilating of houses and buildings or the cooking of food or motive power or other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in fixing repairing and removing the same and may in respect thereof demand and take such rents charges and remuneration and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom such articles or things are sold let fixed repaired or removed.

(2) No such articles or things let for hire under the provisions of this section shall be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such articles and things have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Discounts.

38. The Company may if they think fit allow discounts or rebates not exceeding in any case twenty-five per centum to consumers of gas in consideration of prompt payment of gas and meter rents or of large consumption upon such scale and subject to such

conditions and regulations as may be prescribed by the Company A.D. 1903.
 Provided that such discounts or rebates shall be of equal amount
 under like circumstances to all consumers. Provided also that in
 the event of the Company allowing such discounts or rebates notice
 of the effect of this provision shall be endorsed on every demand
 note for gas rent payable to the Company.

39. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed on every demand note for gas rent payable to the Company. Gas consumers to give notice to Company before re-moving.

40. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to supply to him a supply of gas until he pays the same. Power to refuse to supply persons in debt for other premises.

41. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator or other apparatus for controlling and regulating the supply of gas to such engine and shall at all times at his own expense keep such anti-fluctuator or apparatus in proper order and in default of his so using or keeping in proper repair such anti-fluctuator or apparatus the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator or apparatus at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator or apparatus be found in proper order but otherwise at the expense of such consumer. Anti-fluctuators for gas engines.

42. The Company may on the application of the owner or occupier of any premises within the Company's limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing of such supply and the provisions of the Gasworks Clauses Act 1847 Power to lay pipes in streets not dedicated to public use.

A.D. 1903. — with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply *mutatis mutandis* to and for the purposes thereof.

No penalty
in case of
unavoidable
cause.

43. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the recited Acts and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Expenses of
Act.

44. All costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.